

Ms. Neetu Rawat vs State Of Uttarakhand on 15 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

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IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL

Criminal Writ Petition No. 152 of 2013
with
Urgency Application No. 870 of 2013
Interim Relief Application No. 820 of 2013

Ms. Neetu Rawat
D/o Shri Vikram Singh Rawat
R/o House No. 535, Jagriti Vihar
Sector No.2, Thana Medical, Meerut (U.P)
At present residing at 278 Sanjay Nagar
Meerut (U.P)

..... Petitioner

Versus

1. State of Uttarakhand, through
Secretary Home Affairs Dehradun.
2. Senior Superintendent of Police
District Nainital
3. Station House Officer
Kaladhungi, District Nainital
4. Smt. Bhawna Rawat
W/o Sri Deepak Rawat
D/o Aan Singh Kanyal
R/o Village Pratappur, Chakwalva
P.S. Kaladhungi, District Nainital

.....Respondents.

Shri Deep Joshi, Advocate, present for the petitioner.
Ms. Shivali Joshi, Brief Holder, present for the State.

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 870 of 2013 is allowed.

(2) Heard.

(3) By means of this writ petition moved under Article 226 of Constitution of India, the petitioner has sought quashing of the First Information Report dated 10.01.2013 registered as F.I.R. No. 04 of 2013 relating to offences punishable under section 498A, 323, 506 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, Police Station Kaladhungi, District Nainital.

(4) Learned counsel for the petitioner submitted that petitioner is sister in law (NANAD) of the respondent no. 4 Bhawna Rawat, who is pursuing her studies and living in Meerut. It is argued that it is abuse of process of law on the part of the respondent no.4 to implicate the petitioner in the criminal case due to the matrimonial discord between respondent no.4 and her husband (brother of the petitioner). It is further argued that First Information Report is counter blast to the suit filed by brother of the petitioner under section 9 of Hindu Marriage Act, against the complainant (respondent no.4).

(5) Admit the petition.

6) Learned counsel for the State prays for and is

allowed six weeks' time to file the counter affidavit.

(7) Issue notice to respondent no.4 Bhawna Rawat, who may also file her counter affidavit within a period of six weeks.

(8) Having considered submissions of learned counsel for the petitioner, and learned counsel for the State, and after going through the papers on record, as an interim measure, it is directed that petitioner Neetu Rawat shall not be arrested in connection with F.I.R. No. 04 of 2013 relating to offences punishable under section 498A, 323, 506 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, registered at Police Station Kaladhungi, District Nainital, during investigation, provided she cooperates with the investigating agency. (Interim Relief Application No. 820 of 2013 stands disposed of).

(9) List after six weeks.

(Prafulla C. Pant, J.)
Vacation Judge

Dt . 15 . 02 . 2013

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